

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
ANDRE GRAHAM,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD DET. MOHAMMAD RIOS;
NYPD DET. GUSTAVO ROSADO; NYPD P.O. JOHN/JANE DOES
1-10; all of the above individual defendants,
including named are sued in their individual and
official capacities,

Defendants.
----- X

SUMMONS:

Index No: _____

Date Filed: _____

Basis of Venue: Location of
incident: New York County

Jury Trial Demanded

YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiff's attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
MAY 3, 2018



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONG LLP
Attorney for Plaintiffs
65 Broadway 715
New York, New York 10006
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

NYPD DET. MOHAMMAD RIOS
NYPD DET GUSTAVO ROSADO
NYPD P.O. JOHN/JANE DOES # 1-10
Patrol Borough Manhattan North
151 W. 100th St., New York NY, 10025

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

ANDRE GRAHAM,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK; NYPD DET. MOHAMMAD
RIOS; NYPD DET. GUSTAVO ROSADO; NYPD P.O.
JOHN/JANE DOES # 1-10; all of the above
individual defendants, including named
are sued in their individual and official
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Index No: _____

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York County

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Defendants.

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The Plaintiff, ANDRE GRAHAM, by and through counsel
Adams & Commissiong LLP, alleges upon information and belief as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort
action in which plaintiff seeks relief for the violation of his
rights secured by the laws of the State of New York; New York
State Constitution; 42 U.S.C. §§ 1983 and 1988; and the Fourth,
Sixth, and Fourteenth Amendments to the United States
Constitution. Plaintiff's claims arise from an incident that
arose on or about February 4, 2017. During the incident, the
City of New York, and members of the New York City Police
Department ("NYPD") subjected plaintiff to, among other things,
excessive force, assault and battery, failure to intervene, and

implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the conclusion of the incidents alleged in this complaint, plaintiff served upon defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. This action is being commenced within one year and ninety days of the date of the occurrence herein.

5. Venue is proper in the Supreme Court of the State of New York, NEW YORK County, because the acts in question occurred in the State of New York, New York County, and the City

of New York is subject to personal jurisdiction in Supreme Court of the State New York, New York County.

6. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

PARTIES

7. Plaintiff Andre Graham is an African American Male, a resident of the State of New York, NEW YORK County.

8. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

9. At all times alleged herein, defendants NYPD DET. MOHAMMAD RIOS; NYPD DET. GUSTAVO ROSADO; and NYPD P.O. JOHN/JANE DOES # 1-10, were New York City Police Officers employed with the Patrol Borough Manhattan North, located in New York County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

10. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

11. On February 4, 2017, at and in the vicinity of 131 Amboy Street, Brooklyn, New York, several police officers operating from Patrol Borough Manhattan North, including upon information and belief, NYPD DET. MOHAMMAD RIOS; NYPD DET. GUSTAVO ROSADO and NYPD P.O. John or Jane Does # 1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiff.

12. On February 4, 2017, at approximately 7:45 p.m., at and in the vicinity of 111th Street and Lenox Amboy Street, the defendants, assaulted and battered and committed excessive force on plaintiff.

13. Plaintiff was walking home from work.

14. Two men grabbed plaintiff and told him to empty his pockets.

15. The men did not identify themselves as police officers, nor did they display anything that could identify them as police officers.

16. The two men were upon information and belief defendants NYPD DET. MOHAMMAD RIOS and NYPD DET. GUSTAVO ROSADO.

17. One of defendants NYPD DET. MOHAMMAD RIOS or NYPD DET. GUSTAVO ROSADO grabbed plaintiff's right arm, while the other punched plaintiff in the face repeatedly.

18. Officers John/Jane Does # 1-10 arrived.

19. The officers and detectives then forced plaintiff to the ground, and sprayed him with a chemical agent.

20. One of the officers or detectives placed excessively tight handcuffs on plaintiff.

21. Plaintiff requested medical attention, but was not provided medical attention.

22. The officers continued to physically abuse plaintiff.

23. The defendant officers and detectives then forced plaintiff into a van.

24. While plaintiff was handcuffed, defendant NYPD Detective RIOS, punched plaintiff in the left ear repeatedly.

25. Plaintiff continued to request medical treatment and was eventually taken to the hospital in an ambulance.

26. Plaintiff was then taken to central booking.

27. During this time, in order to cover up their illegal actions, the defendant officers, pursuant to a conspiracy, falsely and maliciously told the NEW YORK County District Attorney's Office that plaintiff resisted arrest.

28. The defendants made these false allegations, to cover up the fact that they had committed excessive force on plaintiff, when force was necessary.

29. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

30. Plaintiff did not resist arrest.

31. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

32. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

33. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

34. Upon information and belief, the unlawful actions against plaintiff were also based on profiling.

FIRST CLAIM

(UNREASONABLE FORCE)

35. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

36. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

37. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff, since plaintiff was unarmed, compliant, and did not resist arrest.

38. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

39. Accordingly, the defendants are liable to plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SECOND CLAIM

(ASSAULT)

40. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

41. Among other things as described above, defendants' search and seizure, battery, false arrest, and excessive use of force against plaintiff placed him in fear of imminent harmful and offensive physical contacts.

42. Accordingly, defendants are liable to plaintiff under New York State law for assault.

THIRD CLAIM**(BATTERY)**

43. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

44. Among other things as described above, defendants' search and seizure, false arrest, and excessive use of force against plaintiff were illegal physical contacts.

45. Accordingly, defendants are liable to plaintiff under New York State law for battery.

FOURTH CLAIM**(FAILURE TO INTERVENE)**

46. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

47. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

48. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

FIFTH CLAIM**(NEGLIGENCE)**

49. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

50. Defendants are liable to plaintiff because defendants owed plaintiff a cognizable duty of care as a matter of law, and breached that duty.

SIXTH CLAIM

**(NEGLIGENT SUPERVISION, HIRING, MONITORING,
TRAINING, AND RETENTION OF UNFIT EMPLOYEES)**

51. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

52. Defendant City of New York is liable to plaintiff because the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of Defendant City of New York, and the NYPD, its agents, servants and/or employees, as set forth above, without provocation on the part of plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected, and retained its Police Officers.

SEVENTH CLAIM

(INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS)

53. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

54. That by virtue of the occurrence and defendants, individually and/or by their agents, servants and/or employees,

negligently and/or intentionally inflicted emotional harm upon plaintiff.

55. The defendants' actions against plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

56. The defendants breached a duty owed to plaintiff that either unreasonably endangered plaintiff's physical safety, or caused plaintiff to fear for his own safety.

EIGHTH CLAIM

(MONELL CLAIM)

57. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

58. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

59. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) committing excessive force on persons; (2) wrongfully and falsely accusing persons of resisting arrest; (3) fabricating evidence against innocent persons.

60. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts

alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

61. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

62. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

63. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

64. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and

convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state courts and served time in federal prison. In 2011, Brooklyn South Narcotics Officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County, while under indictment for corruption and is presently serving a life sentence. In 2011, Police Officer William Eiseman and his subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in Supreme Court, New York County, of raping and sexually assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

65. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

66. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

67. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

NINTH CLAIM

(RESPONDEAT SUPERIOR)

68. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

69. The individual defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against plaintiff, including assaulting, and battering plaintiff.

70. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;

- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
May 3, 2018

ADAMS & COMMISSIONG LLP,
Attorney for Plaintiff
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New York, New York 10006
212-430-6590
martin@amcmlaw.com
By:



MARTIN E. ADAMS, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ANDRE GRAHAM,

Plaintiff,

VERIFICATION

Index No: _____

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1-10; all of the above individual defendants,
including named are sued in their individual and
official capacities,

Defendants.

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STATE OF NEW YORK

ss.:

COUNTY OF NEW YORK

Martin E. Adams, Esq, an attorney-at-law, duly admitted to practice law
in the State of New York, hereby affirms pursuant to the C.P.L.R. and
subscribing as true under the penalties of perjury as follows:

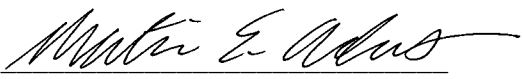
That the Affirmant is a member of the law firm Adams & Commissiong LLP,
the attorneys of record for the plaintiff in the above entitled action.

That the Affirmant has read the foregoing complaint and knows the
contents thereof; that the same is true to his knowledge, except as to the
matters stated to be alleged upon information and belief, and that as to
those matters he believes them to be true.

That the reason why this verification is made by Affirmant instead of
the plaintiff is because the plaintiff does not reside within the County in
which the firm of Adams & Commissiong LLP maintain their office.

The grounds of Affirmant's belief as to all matters in the complaint
not stated to be upon his knowledge are based upon conversations with
plaintiff, and a review of records related to this action.

DATED: New York, New York
May 3, 2018



MARTIN E. ADAMS, ESQ